

BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.,
Complainant

v.

MSC MEDITERRANEAN SHIPPING COMPANY S.A.,
Respondents.

DOCKET NO. 21-05

**RESPONDENT MEDITERRANEAN SHIPPING COMPANY S.A.'S CONSENT
MOTION FOR EXTENSION OF TIME TO RESPOND**

Respondent MSC Mediterranean Shipping Company S.A. (“MSC”) hereby submits this Motion for Extension of Time to permit an enlargement of time to respond to Complainant MCS Industries’ (“MCS”) Petition for Attorneys’ Fees.

Pursuant to 46 C.F.R. § 502.102, motions for enlargement of time “may be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” The rules of the Federal Maritime Commission, 46 C.F.R. 502.254(e), require that a response to a petition for attorney fees must be served and filed within 20 days of the service date of the petition—in this case, by Thursday, October 9, 2025. Respondent’s filing of this Motion complies with the seven-day requirement. Respondent respectfully requests that the Presiding Officer grant an enlargement of fourteen (14) additional days, or until Tuesday, October 23, 2025, to respond to Complainant’s Petition for Attorneys’ Fees.

Respondent submits that good cause exists to grant the enlargement of time requested and that the additional time would not cause any undue prejudice or delay. A two-week extension will allow the parties to continue ongoing settlement discussions. Granting this motion will not

prejudice any party and will facilitate the parties' efforts to resolve this matter. Counsel for Complainant has been consulted and has consented to the requested enlargement of time.

For the reasons set forth above, Respondent respectfully requests that the Motion for Extension of Time be granted.

Respectfully submitted,

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Counsel for Respondent

October 1, 2025

CERTIFICATE OF SERVICE

I certify that on this 1st day of October 2025, a true and current copy of the foregoing document was served via electronic mail on the following:

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/ s / John Longstreth

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